

TERMS AND CONDITIONS

Bothive

Effective Date: 17 June 2026

Please read these Terms and Conditions carefully before using Bothive's website, software, point-of-sale systems, or related services. They set out the rules that govern your use of our Services and your relationship with us.

1. Acceptance of Terms

These Terms and Conditions ("Terms") govern your access to and use of the website, software, point-of-sale (POS) systems, and related services (collectively, the "Services") provided by Bothive ("Bothive," "we," "us," or "our"). By accessing or using our Services, you agree to be bound by these Terms. If you do not agree, please discontinue use of the Services immediately.

2. Description of Service

Bothive provides point-of-sale (POS) solutions, electronic Tax Invoice Management System (eTIMS) support and integration, business consultation services, and payment processing integration designed to help businesses manage sales, inventory, and tax compliance. The features, tools, and integrations available to you may vary depending on your subscription plan and may be updated, modified, or discontinued at our discretion, with reasonable notice where practicable.

3. Account Registration & Eligibility

To access certain features of our Services, you may be required to register for an account and provide accurate, current, and complete information. You are responsible for maintaining the confidentiality of your login credentials and for all activities that occur under your account. You must be at least 18 years old, or the age of legal majority in your jurisdiction, and have the authority to bind your business to these Terms.

4. Subscription, Fees & Payment Terms

Certain Services are offered on a subscription or pay-per-use basis. Applicable fees, billing cycles, and payment methods will be presented to you at the time of purchase or subscription. All fees are exclusive of applicable taxes unless stated otherwise. We reserve the right to change our pricing with reasonable advance notice. Failure to pay applicable fees may result in suspension or termination of your access to the Services.

5. Acceptable Use Policy

You agree not to use the Services to:

- Violate any applicable law or regulation;
- Transmit fraudulent, deceptive, or tax-evading transaction data;

- Interfere with or disrupt the integrity or performance of the Services;
- Attempt to gain unauthorized access to our systems or other users' accounts; or
- Use the Services for any unlawful, harmful, or fraudulent purpose.

We reserve the right to suspend or terminate access for any violation of this policy.

6. Intellectual Property

All content, software, trademarks, logos, and materials associated with the Services are the property of Bothive or its licensors and are protected by applicable intellectual property laws. Nothing in these Terms grants you any right, title, or interest in our intellectual property, except for a limited, non-exclusive, non-transferable license to use the Services in accordance with these Terms.

7. Third-Party Services & Integrations

Our Services may integrate with or rely on third-party providers, including payment processors, tax authority systems, and other software platforms. We are not responsible for the availability, accuracy, or performance of third-party services, and your use of such integrations may be subject to the third party's own terms and policies.

8. Privacy

Our collection and use of personal and business information in connection with the Services is described in our Privacy Statement, which forms part of these Terms by reference. By using our Services, you consent to the practices described in our Privacy Statement.

9. Limitation of Liability & Disclaimers

The Services are provided on an “as is” and “as available” basis without warranties of any kind, whether express or implied. To the fullest extent permitted by law, Bothive shall not be liable for any indirect, incidental, special, consequential, or punitive damages, including loss of revenue, profits, or data, arising from your use of or inability to use the Services.

10. Termination

We may suspend or terminate your access to the Services at any time, with or without notice, for conduct that violates these Terms or for any other reason at our discretion. You may terminate your account at any time by ceasing use of the Services and following any applicable cancellation procedures. Provisions that by their nature should survive termination will remain in effect.

11. Governing Law & Dispute Resolution

These Terms shall be governed by and construed in accordance with the laws of Kenya, without regard to its conflict of law principles. Any disputes arising out of or relating to these Terms or the Services shall first be addressed through good-faith negotiation, and if unresolved, shall be subject to the exclusive jurisdiction

of the courts of Kenya.

12. Changes to These Terms

We may update these Terms from time to time to reflect changes in our Services, legal requirements, or business practices. We will notify you of material changes by posting the updated Terms on our website with a revised effective date. Continued use of the Services after such changes constitutes your acceptance of the updated Terms.

13. Contact Information

If you have any questions about these Terms, please contact us at: [Insert Bothive support email] or [Insert physical / registered business address].